

Amitava Chandra vs Snigdha Chandra (Chakraborty) on 1 March, 2021

Author: Arindam Sinha

Bench: Arindam Sinha

01.03.2021
Item No. 10
Ct. No. 04
PG

F.A.T. 474 of 2019
With
I.A. no. CAN 1 of 2019 (Old CAN 10346 of 2019)

Amitava Chandra
Vs.
Snigdha Chandra (Chakraborty)

Mr. Aniruddha Chatterjee
Mr. Saryati Datta
Ms. Rajnandini Dasfor appellant

Mr. Chatterjee, learned advocate appears on
behalf of appellant/husband, against whom the suit
was decreed ordering dissolution of marriage. He
submits, his client wants his wife back. Hence, the
application. Respondent/wife goes unrepresented. Mr.

Chatterjee submits, there be order of stay of operation of impugned judgment and decree.

We find first order made on the application by coordinate Bench was on 21 st November, 2019. The judgment and decree is dated 7th August, 2019. Respondent/wife was represented, as found from order sheet. There was no mention that she has re- married. In the circumstances, respondent/wife has notice of the appeal and there is no need to pass order for stay of operation of the judgment since section 15 in Hindu Marriage Act, 1955 stands attracted as a bar to her remarriage on the appeal pending.

Let lower Court records be brought and thereafter appellant will prepare paper books. Notice of appeal be issued to respondent. Mr. Chatterjee submits, his client will put in cost for special

messenger. Let the cost be put in by 8 th March, 2021 and thereafter the lower Court records be brought by special messenger.

The application [I.A. no. CAN 1 of 2019 (Old CAN 10346 of 2019)] is disposed of.

List the appeal on 6th April, 2021.

(Arindam Sinha, J.) (Suvra Ghosh, J.)